

SHOWING AND COMPENSATION AGREEMENT (LEASE)

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1. Date _____

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3. **DEFINITIONS:** This Agreement involves the property located at _____ ,
4. City of _____ ,
5. County of _____ , State of Minnesota, Zip Code _____ ,
6. legally described as _____ (“Property”).
7. Owner is _____ (“Owner”).
(e.g., individual(s), estate, trust, corporation, etc.)
8. Broker is _____ (“Broker”).
(Real Estate Company Name)
9. This Agreement starts on _____ , and ends one year from this date.
10. This Agreement may only be canceled by written mutual agreement of the parties.

11. **SHOWING AGREEMENT:** Owner gives Broker permission to show and lease the Property to the prospective tenant(s)
12. whose name(s) is/are: _____
13. _____
14. _____ (“Tenant”).
15. Owner understands that this Agreement is only a compensation agreement for leasing Owner’s Property to the above-
16. named prospective Tenant and Owner is not listing Owner’s Property with Broker. Owner understands that Owner
17. can lease Owner’s Property to other tenants even though this Agreement has not expired.

18. **Owner understands that Broker is not representing Owner as Owner’s agent and that Broker is**
19. **representing or assisting Tenant.**
20. If Broker leases the Property, Broker may notify the Multiple Listing Service (“MLS”) of the price and terms of the lease
21. and Property information. Owner understands this Agreement DOES NOT give Broker authority to rent or manage
22. the Property. Owner acknowledges that neither Broker, the MLS, the Minnesota Association of REALTORS®, nor any
23. other broker is insuring Owner or occupant against theft, loss, or vandalism.

24. **OWNER’S OBLIGATION:** Owner shall keep Broker notified of new information important to the lease of the Property.
25. Owner shall cooperate with Broker in leasing the Property. Owner agrees to provide and pay for any inspections and
26. reports required by any governmental authority. Owner agrees to provide unit owners’ association documents, if
27. required. Owner shall remain responsible for security, maintenance, utilities, and insurance while Owner owns the
28. Property, and for safekeeping, securing, and/or concealing any valuable personal property. Owner has the full legal
29. right to lease the Property.

30. **RECORDING ON THE PROPERTY:** Owner understands that MN Statute 626A.02 specifically prohibits the interception
31. of oral communications without the consent of at least one of the two parties to the communication. Owner should seek
32. appropriate legal advice regarding compliance with this statute if Owner intends to utilize technology that may intercept
33. oral communications between persons other than Owner.

34. **NOTICE: THE COMPENSATION FOR THE SALE, LEASE, RENTAL, OR MANAGEMENT OF REAL PROPERTY**
35. **SHALL BE DETERMINED BETWEEN EACH INDIVIDUAL BROKER AND THE BROKER’S CLIENT.**

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37. Property located at _____.
38. **BROKER'S COMPENSATION:** Owner shall pay Broker, as Broker's compensation, as follows:
39. _____
40. _____
41. if Owner leases or agrees to lease the Property before this Agreement expires, regardless of whether Tenant fulfills all
42. Tenant's obligations under the lease. Owner agrees to pay Broker's compensation whether Broker, Owner, or anyone
43. else leases this Property to a tenant. Owner agrees to pay Broker's compensation in full upon entering into a lease
44. agreement with Tenant, unless otherwise specified on lines 39-40.
45. OWNER UNDERSTANDS THAT IF OWNER ENTERS INTO A LISTING CONTRACT OR A FACILITATOR SERVICES
46. AGREEMENT WITH ANOTHER LICENSED REAL ESTATE BROKER DURING THE TERM OF THIS AGREEMENT
47. AND LEASES THE PROPERTY TO THE ABOVE-NAMED PROSPECTIVE TENANT, OWNER MAY BE OBLIGATED
48. TO PAY COMPENSATION TO BOTH BROKERS.
49. To secure payment of Broker's compensation, Owner hereby assigns to Broker the gross proceeds from the lease of
50. the Property in an amount equal to the compensation due to Broker under this Agreement.
51. **OTHER POTENTIAL OWNERS:** Owner understands that Broker may list other properties during the term of this
52. Agreement. Owner consents to Broker representing such other potential owners before, during, and after the expiration
53. of this Agreement.
54. **PREVIOUS AGENCY RELATIONSHIPS:** Broker or licensee may have had a previous agency relationship with a
55. potential tenant of Owner's Property. Owner acknowledges that Broker and licensee are legally required to keep
56. information regarding the ultimate price and terms the tenant would accept and the motivation for leasing confidential,
57. if known.
58. **INDEMNIFICATION:** Broker will rely on the accuracy of the information Owner provides to Broker. Owner agrees
59. to indemnify and hold harmless Broker from and against any and all claims, liability, damage, or loss arising from any
60. misrepresentation, misstatement, omission of fact, or breach of a promise by Owner. Owner agrees to indemnify and
61. hold harmless Broker from any and all claims or liability related to damage or loss to the Property or its contents, or any
62. injury to persons in connection with the showing of the Property. Indemnification by Owner shall not apply if the
63. damage, loss, or injury is the result of the gross negligence or willful misconduct of the Broker.
64. **LEAD-BASED PAINT:** If any structure on the Property was built before 1978, Owner shall provide to Broker and
65. prospective tenants a Disclosure of Lead-Based Paint and Lead-Based Paint Hazards as required by the U.S.
66. Department of Housing and Urban Development.
67. **FAIR HOUSING NOTICE:** Owner understands that Owner may not refuse to lease, or discriminate in the terms,
68. conditions, or privileges of lease, to any person due to his/her race, color, creed, religion, national origin, sex, marital
69. status, status with regard to public assistance, handicap (whether physical or mental), sexual orientation, or family
70. status. Owner understands further that local ordinances may include other protected classes.
71. **ADDITIONAL NOTICES AND TERMS:** As of this date Owner has not received notices from any municipality,
72. government agency, or unit owners' association about the Property, nor has Owner received any notice of a contract
73. for deed cancellation or notice of mortgage foreclosure except as disclosed in writing to Broker at the time of execution
74. of this Agreement. Owner agrees to promptly inform Broker, in writing, of any notices of such types that Owner receives
75. during the term of this Agreement.
76. **ENTIRE AGREEMENT:** This Agreement and all addenda and amendments signed by the parties shall constitute the
77. entire agreement between Owner and Broker. Any other written or oral communication between Owner and Broker,
78. including, but not limited to, e-mails, text messages, or other electronic communications are not part of this Agreement.
79. This Agreement can be modified or canceled only in writing signed by Owner and Broker or by operation of law. All
80. monetary sums are deemed to be United States currency for purposes of this Agreement.
81. **ELECTRONIC SIGNATURES:** The parties agree the electronic signature of any party on any document related to
82. this transaction constitute valid, binding signatures.
83. **CONSENT FOR COMMUNICATION:** Owner authorizes Broker and its representatives to contact Owner by mail,
84. phone, fax, e-mail, text message or other means of communication during the term of this Agreement and anytime
85. thereafter.

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87. Property located at _____.

88. **OTHER:** _____

89. _____

90. _____

91. _____

92. _____

93. BROKER

OWNER

94. **ACCEPTED BY:** _____
(Real Estate Company Name)

ACCEPTED BY: _____
(Owner's Signature)

95. By: _____
(Licensee's Signature)

(Owner's Printed Name)

96. _____
(Licensee's Printed Name)

(Date)

97. _____
(Date)

(Address)

98. _____
(Address)

(City/State/Zip)

99. _____
(City/State/Zip)

(Phone)

100. _____
(Phone)

(E-Mail Address)

101. _____
(E-Mail Address)

OWNER

ACCEPTED BY: _____
(Owner's Signature)

(Owner's Printed Name)

(Date)

(Address)

(City/State/Zip)

(Phone)

(E-Mail Address)

**THIS IS A LEGALLY BINDING CONTRACT BETWEEN OWNER AND BROKER.
IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL.**

WIRE FRAUD ALERT



Internet fraud — the use of Internet services or software with Internet access to defraud victims — is on the rise in real estate transactions.

THESE SOPHISTICATED CRIMINALS COULD:

- **HACK INTO YOUR E-MAIL ACCOUNT** or the e-mail of others involved in your real estate transaction and may direct you to wire money to the hacker's account.
- **SEND FRAUDULENT E-MAILS** that appear to be from your real estate licensee, lender, or closing agent.
- **CALL YOU** claiming they have revised wiring instructions.

Buyers/Tenants and Sellers/Owners are advised to:

- (1) Never wire funds without confirming the wiring instructions directly with the intended recipient.
- (2) Verify that the contact information for the wire transfer recipient is legitimate by calling a known phone number for the broker or closing agent. Do not rely on the information given to you in an e-mail communication.
- (3) Never send personal information through unsecured/unencrypted e-mail.

If you suspect wire fraud in your transaction:

- (1) Immediately notify your bank, closing agent, and real estate licensee.
- (2) File a complaint online at the Internet Crime Complaint Center (IC3) at <http://www.ic3.gov>.

The undersigned acknowledge receipt of this wire fraud alert and understand the importance of taking proactive measures to avoid being a victim of wire fraud in a real estate transaction.

(Signature)

(Date)

(Signature)

(Date)

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